

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Janine Zajac	Team: Team # 1	CCRB Case #: 201107731	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 06/09/2011 6:45 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/9/2012	Precinct: 49		
Date/Time CV Reported Thu, 06/09/2011 12:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/15/2011 2:59 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Carlos Lozada	01174	930601	NARCB BX
2. DT3 Rolando Carbonell	06831	928017	NARCB BX
3. DT3 Noelle Cunningham	00093	928137	NARCB BX
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Sean Lynch	04339	917115	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in the Bronx	A . Exonerated
B . DT3 Carlos Lozada	Force: Det. Carlos Lozada pointed his gun at § 87(2)(b)	B . Unsubstantiated
C . DT3 Carlos Lozada	Discourtesy: Det. Carlos Lozada spoke obscenely to § 87(2)(b)	C . Unsubstantiated
D . DT3 Noelle Cunningham	Abuse: Det. Noelle Cunningham strip-searched § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . DT3 Noelle Cunningham	Discourtesy: Det. Noelle Cunningham spoke obscenely to § 87(2)(b)	E . Alleged Victim Uncooperative
F . DT3 Carlos Lozada	Abuse: Det. Carlos Lozada threatened to seize § 87(2)(b)'s property.	F . Unsubstantiated
G . DT3 Rolando Carbonell	Abuse: Det. Rolando Carbonell threatened to damage § 87(2)(b)'s property.	G . Unsubstantiated

Case Summary

At approximately 12:40 p.m. on June 9, 2011, § 87(2)(b) filed a complaint over the phone with IAB on behalf of herself and her twenty-year-old daughter, § 87(2)(b) which generated log #11-26567 (enc. 3a-b). Her complaint was received at the CCRB on June 15, 2011.

At approximately 6:45 a.m. on June 9, 2011, Sgt. Sean Lynch, Det. Carlos Lozada, Det. Ronaldo Carbonell, and Det. Noelle Cunningham of Bronx Narcotics, as well as additional officers, executed a search warrant at § 87(2)(b)'s apartment, located at § 87(2)(b) apt. § 87(2)(b) in the Bronx. The following allegations resulted.

- **Allegation A – Abuse of Authority:** Officers entered and search § 87(2)(b) in the Bronx. § 87(2)(g) it is recommended that **Allegation A be Exonerated.**
- **Allegation B – Force:** Det. Carlos Lozada pointed his gun at § 87(2)(b)
- **Allegation C – Discourtesy:** Det. Carlos Lozada spoke obscenely to § 87(2)(b)
- **Allegation D – Abuse of Authority:** Det. Noelle Cunningham strip-searched § 87(2)(b) and § 87(2)(b)
- **Allegation F – Abuse of Authority:** Det. Carlos Lozada threatened to seize § 87(2)(b)'s property.
- **Allegation G – Abuse of Authority:** Det. Rolando Carbonell threatened to damage § 87(2)(b)'s property. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) it is recommended that **Allegations B, C, D, F, and G be Unsubstantiated.**
- **Allegation E – Discourtesy:** Det. Noelle Cunningham spoke obscenely to § 87(2)(b) § 87(2)(g) it is recommended that **Allegation E be closed as Victim Uncooperative.**

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b)-year-old black female, § 87(2)(b), with black hair and brown eyes.

§ 87(2)(b) provided a brief phone statement on June 16, 2011 (encl. 5a), which was consistent with her original complaint and with her CCRB statement with the following exceptions noted below. § 87(2)(b) was interviewed at the CCRB on June 23, 2011 (encl. 6a-g). On June 9, 2011, § 87(2)(b) woke up at approximately 5:00 am, left her apartment bought a cup of coffee, a pack of cigarettes, returned to her apartment. At approximately 6:30 a.m., § 87(2)(b) was sitting on her bed and watching the news on television when she heard a noise outside of her apartment door that sounded like a power drill. She approached the door and she saw that the screws on the hinges of her door were being loosened. She did not say anything but stayed within arm's reach of the door and waited to see what would happen. § 87(2)(b) stated that because of § 87(2)(b) she sometimes sees things that are not there. She was therefore confused and wanted to see if someone was going to enter her apartment.

Shortly thereafter, a team of officers forced her door open and one of the officers, identified through investigation as Det. Carlos Lozada, grabbed § 87(2)(b) and pulled her in to the hallway. § 87(2)(b) initially could not remember which officer did this, but later described Det. Lozada as a white male, 5'5", heavy set, completely bald, 35-45 years old with glasses. § 87(2)(b) stated that when she is afraid she blacks out and is unable to remember faces, but she was able to clearly remember Det. Lozada and the female officer who was present, identified through investigation as Det. Noelle Cunningham. Both officers were assigned to Bronx Narcotics. When asked if she could have potentially blacked out any portion of the incident, § 87(2)(b) said that she tried to remember as much as she could. Det. Lozada threw § 87(2)(b) to the floor and she laid flat on her stomach in the hallway and put her hands behind her back. In her original complaint to IAB (encl. 3a-b), § 87(2)(b) alleged that she sustained a cut on her leg from this action, but did not mention any injuries during her CCRB phone statement or her CCRB interview. § 87(2)(b) was handcuffed immediately once she was on the floor, so she assumed that Det. Lozada handcuffed her, though she was not certain. While she was still on the floor and in handcuffs, Det. Lozada put his pistol to § 87(2)(b)'s head so that the muzzle was against the side of her head and asked her who else was inside the apartment. § 87(2)(b) later said that she was picked up off the floor immediately after she was handcuffed. § 87(2)(b) said that her daughter, § 87(2)(b) her daughter's boyfriend, § 87(2)(b) and her own boyfriend, § 87(2)(b) were inside. While § 87(2)(b) was in the hallway, other officers dressed in riot gear with large shields and helmets entered her apartment.

Officers pulled her up off the floor and took her inside the apartment. Once she was up off the floor, § 87(2)(b) began to ask why the officers were at her apartment. Det. Lozada held up manila envelope with a piece of paper held in front of it and said they had a warrant for § 87(2)(b). Det. Lozada then said they would explain more once they had everyone together. Det. Lozada asked § 87(2)(b) if her apartment was Section 8 housing and she said it was. Det. Lozada told her if she revealed where the drugs were she would not lose her apartment. She told Det. Lozada she does not sell drugs, and Det. Lozada said if they found "one roach or one bag of marijuana" she would be arrested and lose her apartment. The officers who went in to the apartment got everyone else out of bed and brought them to the living room in handcuffs and had them sit on the couch. § 87(2)(b) was not able to see or hear what happened in her daughter's room. The four occupants of the apartment were then seated on the couch while officers asked for their names and other information. The other officers began to search § 87(2)(b)'s apartment, and Det. Lozada and another officer, identified through investigation as Det. Rolando Carbonell made jokes about how clean the apartment was. § 87(2)(b) described Det. Carbonell as a black male, 45-55 years old, 6'2", with a muscular build and a Jamaican accent. Det. Carbonell was the only black officer present. Det. Lozada said, § 87(2)(b) "you have a real nice apartment. We're going to fuck this place up if you don't tell us where the drugs are." Det. Lozada also said, § 87(2)(b) "I've been on this job for fifteen years, you don't know how I get down in the streets. Don't fucking play with me." Det. Lozada asked where the drugs were and § 87(2)(b) insisted that she does not sell drugs. A tall officer, who § 87(2)(b) could not describe, made a joke about the fact that § 87(2)(b)'s apartment was the first one he had been in that had hand sanitizer in the kitchen. § 87(2)(b) could not recall anything about this officer's appearance.

At some point after everyone was seated on the couch, § 87(2)(b) told Det. Cunningham that she had to use the bathroom. Det. Cunningham then took § 87(2)(b) to the bathroom and told her not to flush the toilet when she was finished because she would have to check it. § 87(2)(b) asked Det. Cunningham for a pair of shorts and a t-shirt, because although § 87(2)(b) did not recall urinating on herself, she believed that the force of being thrown to the floor had caused some urine to escape her bladder. Det. Cunningham agreed to get

these belongings, and § 87(2)(b) asked if she could go with her. Det. Cunningham said she could, but said, "I have to search you." Det. Cunningham told § 87(2)(b) to come into to § 87(2)(b)'s room, where she strip-searched her. § 87(2)(b) was alone with Det. Cunningham at this point. Det. Cunningham unhandcuffed § 87(2)(b) and instructed her to lift her shirt above her head, and then told her to remove her underwear, spread her legs, spread her buttocks apart, and bend down. Det. Cunningham asked § 87(2)(b) during the strip search if she has ever been arrested and § 87(2)(b) explained that she had been arrested in 2004 § 87(2)(b). § 87(2)(b) later told § 87(2)(b) that Det. Cunningham searched her in a similar way. When Det. Cunningham finished the strip search of § 87(2)(b) she re-handcuffed her and took her back to the living room. Det. Cunningham told § 87(2)(b) to get a pair of shoes, and told her that she was going to jail. Det. Cunningham retrieved § 87(2)(b)'s sneakers and removed the shoelaces. § 87(2)(b) asked Det. Cunningham why she was going to jail, and Det. Cunningham told her it was for attempted drug sale. § 87(2)(b) was inconsistent during her statement regarding the sequence of her interaction with Det. Cunningham and when § 87(2)(b) was allegedly strip-searched in relation to when she was strip-searched.

Det. Cunningham asked § 87(2)(b) if she had ever been arrested before, and § 87(2)(b) told her she had been arrested for fighting. Det. Cunningham asked, "Did you whip that bitch's ass?" § 87(2)(b) said, "Yes," and Det. Cunningham said, "Good." (It is unclear if § 87(2)(b) overheard this exchange or learned about it later.) Det. Cunningham was a white female with blonde hair, 6'2", 40-45 years old, wearing uniform pants and a uniform t-shirt, with an average build and blue eyes. § 87(2)(b) did not overhear or see any interactions between officers and § 87(2)(b) or § 87(2)(b). At this point, Det. Lozada said, "Get them out of here," and § 87(2)(b) asked why it was necessary for them to leave while the search of her apartment was occurring. One of the officers, she did not know which one, responded by saying, "You're going to jail." § 87(2)(b) saw Det. Carbonell begin to search her apartment by opening a few drawers in the living room and lifting up her mattress, but then he offered to take § 87(2)(b) and the others outside. § 87(2)(b) has a locked cabinet in her apartment in which she keeps her prescription medications, including the medications for her Bipolar disorder as well as Oxycodone, which is prescribed to her § 87(2)(b).

§ 87(2)(b) explained § 87(2)(b)'s psychiatric history to Det. Cunningham, and Det. Cunningham said, "There's nothing wrong with your daughter, I just talked to her." § 87(2)(b) was inconsistent during her interview about when officers searched this cabinet, when or if officers asked her for the combination, and who she gave the combination to. At some point, Det. Lozada said, "If you don't tell us where it is, you're never going to see your dog again."

Det. Carbonell took § 87(2)(b) and § 87(2)(b) to a red van, and they all got inside. There were already three individuals inside who live in the building next to § 87(2)(b)'s, and they told § 87(2)(b) that their apartment had been raided as well. § 87(2)(b) knows them to be drug users. Det. Carbonell was in the front passenger seat of the van. The officers drove the van around and then parked. After approximately twenty minutes, § 87(2)(b) began to have an asthma attack while she was inside of the van, and the other prisoners alerted the officers in the front seat. Det. Carbonell came and opened the door and asked § 87(2)(b) where her asthma pump was, and she told him it was in the closet in her kitchen. He asked if it was grey or yellow, and she told him it was grey. Det. Carbonell went back in to the apartment and retrieved § 87(2)(b)'s asthma pump and allowed § 87(2)(b) to step out of the van to use it. Det. Carbonell loosened her handcuffs and said, § 87(2)(b) listen. Please, just tell me. Where did you put the drugs?" Det. Carbonell told her that people always say they do not sell drugs but the officers always find them. § 87(2)(b)

§ 87(2)(b) explained to Det. Carbonell that the only drugs she has in her apartment are her prescription drugs. Det. Carbonell continued to ask § 87(2)(b) where the drugs were, and said that they would bring drug sniffing dogs to her apartment. Det. Carbonell further stated that their dogs would eat her Yorkshire terrier.

§ 87(2)(b) got back in the van, and after approximately an hour or an hour and a half of sitting in the van, the door to the van opened and a different officer whom § 87(2)(b) had not seen inside of her apartment, said, § 87(2)(b) "step outside." This officer remains unidentified, as § 87(2)(b) could only describe him as a white male, approximately 60 years old, with a muscular build and dressed in uniform. She could not recall his face or hair. § 87(2)(b) got out of the van and the officer said, § 87(2)(b) "you won this one." § 87(2)(b) reiterated that she does not sell drugs, and this officer said, "We have been doing a five month investigation on you." He also told § 87(2)(b) that they would be watching her very closely, and that they have pictures of her and a thick case file on her because people have called about her. § 87(2)(b) and the other occupants of her apartment were released from the van.

When § 87(2)(b) returned to her apartment, she could not find her full bottle of oxycodone. Her other medications were scattered on the floor but she was able to pick some of them up and salvage them. § 87(2)(b) stated for the record that she and her daughter have an ongoing dispute with another family, and suspects that this other family has been filing false reports about her which prompted this search warrant. § 87(2)(b) also stated that she provides food, blankets, cigarettes, and other items to members of her community and that people are coming and going from her apartment often.

Attempts to Contact Civilians

§ 87(2)(b) was scheduled to appear at the CCRB with § 87(2)(b) on June 23, 2011, but did not appear for her appointment. § 87(2)(b) was reached by phone on June 24, 2011, and she rescheduled her appointment for June 29, 2011. § 87(2)(b)'s lawyer, § 87(2)(b), left a voice message with the undersigned investigator on June 28, 2011 asking that § 87(2)(b)'s appointment be rescheduled to be conducted at his office. Phone calls to § 87(2)(b) and § 87(2)(b) were made on July 27, 2011. When § 87(2)(b) answered, he immediately gave the phone to § 87(2)(b) who stated that § 87(2)(b) did not want anyone to speak to the CCRB until a meeting could be arranged. Between June 28, 2011 and September 13, 2011, § 87(2)(b) refused to comply with the CCRB policy as outlined in the New York City Charter that all civilian interviews be conducted at the CCRB unless there are extenuating circumstances. § 87(2)(g)

§ 87(2)(b) still would not allow additional civilian interviews to be conducted unless the interviews took place at his office. The investigation therefore proceeded without further civilian interviews.

NYPD Statements:

Subject Officer: DET. CARLOS LOZADA

- § 87(2)(b) -year-old Hispanic male, § 87(2)(b), with brown hair and brown eyes.
- On the date of the incident he worked from 5:27 a.m. until 2:00 p.m. with Det. Carbonell, and their narcotics team executed two search warrants. He was dressed in plainclothes and was assigned to the unmarked maroon prisoner van.

Memo Book

Det. Lozada had the following entries in his memo book pertaining to this incident (encl. 9a-c). At 6:50 a.m. he executed a search warrant at § 87(2)(b) and four people were

arrested. At 6:55 a.m. his team executed a search warrant § 87(2)(b) At 7:00 a.m. he was with Det. Carbonell.

CCRB Testimony

Det. Lozada was interviewed at the CCRB on December 2, 2011 (encl. 10a-b). On June 9, 2011, Det. Lozada executed two search warrants with his team. Det. Lozada did not recall the specifics of the search warrants, and he could not recall who the investigating officers were for these warrants. The two search warrant locations were in buildings that were right next to one another. After the first search warrant location was secured, the team proceeded to the second search warrant location, inside of § 87(2)(b) Det. Lozada was on the entry team for the search warrants, but could not recall exactly what his role was. He viewed the case file copy of the tactical plan for his team for the warrant for § 87(2)(b) on June 9, 2011, on which it is noted that he was assigned to “bunker 1 security/hydro.” This means that he was on the entry team, he used the hydro tool to open the door, and he was also assigned to animal control. Det. Lozada used the device to open the door at § 87(2)(b) as noted on the tactical plan. Det. Lozada could not recall if he personally opened the door for both warrants, and said in his CCRB interview that the times listed in his memo book for when the two different warrants were executed is a notation of what was happening with his entire team. The entries were an approximation of the timeline.

Det. Lozada, as is normal practice for a search warrant, had his gun pointed when he entered the apartment. This is to gain compliance when asking to see people’s hands. Det. Lozada did not hold his gun to § 87(2)(b)’s head. Because Det. Lozada was on the entry team, he did not know which rooms the people in the apartment were occupying. The recorder on the team or the investigating officer would have this information noted. Det. Lozada could not recall which search warrant produced the four arrests noted in his memo book, and he did not know if these were the people who were eventually released. Det. Lozada did not know if any person in particular was the subject of an investigation at § 87(2)(b) Det. Lozada could not recall if there were animals present in § 87(2)(b) and he did not recall having any conversation about dogs, or overhearing any conversation about dogs between Det. Carbonell and anyone. Det. Lozada did not say to § 87(2)(b) “We’re going to fuck this place up if you don’t tell us where the drugs are,” or “Don’t fucking play with me.” Det. Lozada did not recall having a conversation with any females in this apartment. Individuals in the apartment were handcuffed and taken outside so that the team could search the apartment. Det. Lozada could not remember who brought which prisoners downstairs from the apartment.

Det. Lozada did not say to § 87(2)(b) if she did not tell him where the drugs were that she would never see her dog again. He did not know if he went to both search warrant locations. Det. Lozada did not have a conversation with § 87(2)(b) about her prescription medication. Det. Lozada did never learned that any females were strip-searched inside of the apartment. Det. Lozada did not recall if any female officers were present, and viewed the tactical plan and confirmed that no female officers were listed on it. Det. Lozada and Det. Carbonell sat in the prisoner van with the prisoners to watch them. Det. Lozada did not recall any prisoners saying anything in the van, and he did not recall any issues with anyone in the prisoner van, or anyone requesting an asthma pump. Det. Lozada did not know how long he waited in the prisoner van with the prisoners. After the search was finished in the apartment, they released people under the direction of a supervisor, though Det. Lozada did not recall which supervisor gave this direction. From what Det. Lozada could recall, there was no contraband found inside. There were multiple supervisors present on the scene.

Subject Officer: DET. ROLANDO CARBONELL

- § 87(2)(b) -year-old Hispanic male, § 87(2)(b), with black hair and brown eyes.

- *On the date of the incident he worked from 5:27 a.m. until 2:00 p.m. with Det. Lozada, and their narcotics team executed two search warrants. He was dressed in plainclothes and was assigned to the unmarked maroon prisoner van. For the search warrants he was also assigned as walk-on security.*

Memo Book

Det. Carbonell had the following memo book entries pertaining to this incident (encl. 7a-c). At 6:30 a.m. he left the command in vehicle § 87(2)(b) which is an unmarked Buick, with Det. Cunningham. At 6:55 a.m. he had three people under arrest from § 87(2)(b) which was the first search warrant. The search warrants were executed at § 87(2)(b) and § 87(2)(b) § 87(2)(b)

CCRB Testimony

Det. Carbonell was interviewed at the CCRB on November 2, 2011 (encl. 8a-c). § 87(2)(g)

On June 9, 2011, Det. Carbonell was a part of a search warrant team. Det. Carbonell's old partner, Det. Cunningham, rode with him from the command, but he did not know what her role in the search warrant was. Det. Carbonell explained that in his role as "walk-on," he was responsible for gaining entry by himself to the buildings so that the team could execute their search warrants. After he opened the door at § 87(2)(b) the team went into the building and executed the search warrant there. Det. Carbonell, however, stayed downstairs and opened the door for § 87(2)(b) so that the team could execute the second warrant. The doors to these two buildings were approximately ten feet away from one another. Det. Carbonell let his team know that the door to § 87(2)(b) was open. Approximately 5-10 minutes after executing the first warrant, some members of the team remained inside of § 87(2)(b) while other members of the team came downstairs and entered § 87(2)(b) to execute the second warrant. Det. Carbonell was then called to 2511Cruger Avenue to pick up prisoners from that apartment.

When Det. Carbonell entered apartment § 87(2)(b) inside of § 87(2)(b) there were five people already in handcuffs, including two females, § 87(2)(b) and § 87(2)(b) § 87(2)(b) was the target of the search warrant, and the officers were looking specifically for crack and heroin. As soon as Det. Carbonell entered the apartment, his supervisor, Sgt. Lynch, told him to take the prisoners to the prisoner van. Det. Carbonell did not remember if there were any animals in § 87(2)(b)'s apartment. Before Det. Carbonell was able to take them outside, two of the males had to get dressed, and Det. Carbonell helped them. This took a couple of minutes. As soon as they were dressed Det. Carbonell escorted all of the prisoners outside. Det. Carbonell did not interact with the females inside of the apartment. § 87(2)(b) was screaming at Sgt. Lynch that there were no drugs in her house. Det. Carbonell assumed that another officer went downstairs with the prisoners with him, as he is not allowed to take prisoners alone, but he could not recall who accompanied him.

Because there were multiple prisoners in the van from both locations, Det. Carbonell did not focus on any prisoner in particular and was concerned with his team and watching for them to come out of the buildings. Det. Carbonell did not recall asking § 87(2)(b) about having drugs in her apartment, and he did not have any interaction with § 87(2)(b). Det. Carbonell's role at this point was to wait in the prisoner van with the prisoners. Det. Carbonell did not have any conversation with § 87(2)(b) about having drug-sniffing dogs come to her apartment, and he did not tell her that he would have a police dog eat her dog. Det. Carbonell did not recall any discussion with § 87(2)(b) about § 87(2)(b)

Det. Carbonell could not recall exactly how long the prisoners from § 87(2)(b)s apartment were in the van, but he guessed it was between twenty and forty minutes. § 87(2)(b) was calm while she was in the prisoner van. Det. Carbonell and the other officer sat inside the van with the prisoners, and he did not have § 87(2)(b) step out of the van at any point. Sgt. Lynch came downstairs and told Det. Carbonell to release the five people from § 87(2)(b)s apartment because nothing was found in the apartment. Sgt. Lynch spoke to § 87(2)(b) and took her handcuffs off. He and § 87(2)(b) were laughing with each other and being friendly. Det. Carbonell did not know what Sgt. Lynch said to § 87(2)(b). He did not hear Sgt. Lynch say anything to § 87(2)(b) about having a long investigation on her. Det. Carbonell did not learn that § 87(2)(b) or § 87(2)(b) were strip-searched inside of their apartment.

Subject Officer: DET. NOELLE CUNNINGHAM

- § 87(2)(b)-year-old white female, § 87(2)(b), with red hair and blue eyes.
- On the date of the incident she worked from 5:27 a.m. until 2:00 p.m. with the first module of the 52nd Precinct narcotics team, which executed two search warrants. She was dressed in plainclothes and she was assigned to vehicle #§ 87(2)(b) but she could not recall the description of this vehicle.

Memo Book

Det. Cunningham had the following entries in her memo book pertaining to this incident (encl. 11a-b). At 6:30 a.m. there were four people under arrest inside of § 87(2)(b) apt. § 87(2)(b) At 6:55 a.m. there were three people under arrest inside of § 87(2)(b) apt. § 87(2)(b)

CCRB Testimony

Det. Cunningham was interviewed at the CCRB on January 11, 2012 (encl. 12a-b). Det. Cunningham did not recall the particulars of the search warrants she executed on this date. She wrote in her memo book that she was in the car with Sgt. Lynch on the way to execute the warrants, but she could not recall who else she was working with that day. Det. Cunningham did not know if Sgt. Lynch was acting as the supervisor on the scene or what his role was. Det. Cunningham did not recall if any of the arrests noted in her memo book were voided. Det. Cunningham did not recognize the NYS identification of § 87(2)(b) and she does not know who § 87(2)(b) is or recognize her name. She did not recall a conversation about the daughter's psychiatric history or her medications or saying, "Did you whip that bitch's ass," in regards to a fight. Det. Cunningham did not recall a locked cabinet that the officers opened once § 87(2)(b) provided the combination to the lock. Det. Cunningham did not recall conducting any strip searches in connection with the search warrants. Det. Cunningham said that sometimes strip-searches are conducted on the scene of a search warrant, and a supervisor's approval would be obtained before such a strip search would occur.

Subject Officer: SGT. SEAN LYNCH

- § 87(2)(b)-year-old white male, § 87(2)(b), with salt-and-pepper hair and blue eyes.
- On the date of the incident he worked from 4:25 a.m. until 1:00 p.m. as the supervisor of his narcotics team. He was dressed in plainclothes and was assigned to unmarked vehicle #§ 87(2)(b) which is a silver minivan.

Memo Book

Sgt. Lynch had the following entry in his memo book pertaining to this incident (encl. 13a-c). At 6:45 a.m. he executed a search warrant at § 87(2)(b) #§ 87(2)(b)

CCRB Testimony

Sgt. Lynch was interviewed at the CCRB on April 3, 2012 (encl. 14a-b). § 87(2)(g)

On June 9, 2011, Sgt. Lynch supervised his narcotics team. He would have been working particularly with the arresting officer, but he could not recall at the time of his CCRB interview who the arresting officer was on that day. Sgt. Lynch believed that § 87(2)(b) was the subject of the search warrant for having sold to an undercover officer at some point. Sgt. Lynch did not recall interacting with § 87(2)(b)

During his CCRB interview, Sgt. Lynch viewed the search warrant pre-execution tactical plan from the case file, which lists him as the team leader. He explained that in that role he is responsible for overseeing the execution of the search warrant. Typically, he will be the fifth or sixth officer to enter an apartment when he is acting as the team supervisor of a search warrant. Sgt. Lynch viewed the case file copy of Stacy § 87(2)(b)'s New York State identification card, which he did not recognize. Sgt. Lynch did not know if Det. Cunningham was present for this search warrant. Sgt. Lynch did not recall authorizing any strip searches in connection with the search warrant. Sgt. Lynch's team does not conduct strip searches on the scene of search warrants. If the defendants are arrested, they would only be strip-searched at a stationhouse. The decision to strip search anyone would fall to Sgt. Lynch. Sgt. Lynch did not believe that the occupants of § 87(2)(b) #§ 87(2)(b) were handcuffed, and he did not recall them being escorted to the van to wait. They would have been kept in the apartment until evidence was found, at which point they would be arrested and taken to the van.

NYPD Documents

Search Warrant and Pre-Warrant Data Entry Form

The search warrant pertaining to this incident (encl. 15a) shows that the officers were authorized to enter § 87(2)(b), apartment § 87(2)(b) to search for marijuana, crack cocaine, and other packaging and paraphernalia. The warrant is dated § 87(2)(b). The pre-warrant data entry form (encl. 16b) shows that Det. Thomas McHale was the requesting officer, § 87(2)(e), § 87(2)(f)

Tactical Plan

The tactical plan for the date of the incident (encl. 26a) shows that Sgt. Lynch was the team leader, and Det. Lozada and Det. Carbonell were assigned to his team.

Status of Civil Proceedings

- A Notice of Claim has not been filed with the City of New York as of March 5, 2012 with regard to the incident (encl. 20c).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)]
[§ 87(2)(b)]
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Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2a-b)

Subject Officers CCRB History

- Det. Lozada has been a member of the service for ten years and there are three substantiated CCRB allegations against him. (encl. 1a).
 - In case #20100275, charges were recommended for a frisk allegation and he received instructions. No disciplinary action was taken in regards to substantiated stop and search allegations for which charges were recommended.
- Det. Carbonell has been a member of the service for eleven years and there are four substantiated CCRB allegations against him. (encl. 1b-d).
 - In case #200403560, command discipline was recommended for a discourtesy allegation, and he received instructions.
 - In case #200900281, charges were recommended for a gun pointed and stop allegations. The NYPD disposition is pending.
 - In case #200912522, no disciplinary action was recommended or taken in regards to a substantiated threat of arrest allegation.
- Det. Cunningham has been a member of the service for eleven years and there is one substantiated CCRB allegation against her (encl. 1e).
 - In case #201012950, charges were recommended for a physical force allegation, and no disciplinary action was taken.

Conclusion

Identification of Subject Officers

Det. Lozada and Det. Carbonell match the descriptions provided by § 87(2)(b) and they admitted to being present in her apartment on the date of the incident. Det. Cunningham was the only female officer working on the narcotics team on the date of the incident, and she admitted to being present in § 87(2)(b)'s apartment on the date of the incident.

Investigative Findings and Recommendations

Allegation A - Abuse of Authority: Officers entered and searched § 87(2)(b) in the Bronx.

As the narcotics team including Det. Lozada, Det. Carbonell, and Det. Cunningham were executing a valid search warrant (encl. 15a) at the time they entered § 87(2)(b)'s apartment, § 87(2)(g) It is therefore recommended that **Allegation A be Exonerated.**

Allegation B – Force: Det. Carlos Lozada pointed his gun at § 87(2)(b)

Allegation C – Discourtesy: Det. Carlos Lozada spoke obscenely to § 87(2)(b)

Allegation D – Abuse of Authority: Det. Noelle Cunningham strip-searched § 87(2)(b) and § 87(2)(b)

Allegation F – Abuse of Authority: Det. Carlos Lozada threatened to seize § 87(2)(b)'s property.

Allegation G – Abuse of Authority: Det. Rolando Carbonell threatened to damage § 87(2)(b)'s property.

§ 87(2)(b) alleged that the first officer who entered her apartment, identified via investigation as Det. Lozada, put the barrel of his gun against her head. § 87(2)(g)

Det. Lozada, however, denied that he held his gun to § 87(2)(b)'s head. § 87(2)(b) alleged that Det. Lozada said, "We're going to fuck this place up if you don't tell us where the drugs are," and, "Don't fucking play with me." Det. Lozada denied saying this.

§ 87(2)(b) alleged that Det. Cunningham had her step into her daughter's bedroom where § 87(2)(b) and Det. Cunningham were alone, and Det. Cunningham proceeded to strip-search her by instructing her to lift her shirt above her head, and then told her to remove her underwear, spread her legs, spread her buttocks apart, and bend down. § 87(2)(b) said that § 87(2)(b) later said that she was searched in a similar manner, but § 87(2)(b) did not witness this. There is no documentation of any strip-searches occurring during the execution of the search warrant at § 87(2)(b)'s apartment. Det. Cunningham did not recall performing any strip-searches, and none of the officers interviewed ever learned that strip-searches occurred.

§ 87(2)(b) also alleged that Det. Lozada and Det. Carbonell made comments about her small dog, particularly that Det. Lozada said that § 87(2)(b) would never see her dog again if she did not reveal to him where the drugs were in her apartment, and that Det. Carbonell threatened to have drug-sniffing dogs come to her apartment and eat her dog. Det. Lozada and Det. Carbonell denied making these comments, and none of the officers interviewed recalled animals present during the execution of the search warrant, nor did they recall any conversation with § 87(2)(b) about her dog.

As noted above, the attorney representing § 87(2)(b) and § 87(2)(b) refused to comply with the CCRB policy regarding civilian interviews and did not want witnesses to provide statements, so additional civilian statements were not provided during the course of the investigation. § 87(2)(g)

it is recommended that **Allegations B, C, D, F, and G be Unsubstantiated.**

Allegation E – Discourtesy: Det. Noelle Cunningham spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that Det. Cunningham asked § 87(2)(b) if she had ever been arrested before, and § 87(2)(b) told her she had been arrested for fighting. Det. Cunningham asked, "Did you whip that bitch's ass?" § 87(2)(b) said, "Yes," and Det. Cunningham said, "Good." § 87(2)(b) was unclear in her statement regarding whether she overheard this exchange or if § 87(2)(b) informed her of it at a later time. As noted above, § 87(2)(b) did not appear at the CCRB for her scheduled interview, and then her civil attorney did not cooperate with the CCRB. It is therefore recommended that **Allegation E be closed as Victim Uncooperative.**

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date